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#	Case Name	Tentative
1.	2025-1526862 Snutec, Inc. vs. Red Hill Village, LLC	The Court grants Defendants Red Hill Village LLC, JBW Partners LLC, and Bodhi Metta LLC's Motion to vacate the January 7, 2026 defaults and the May 29, 2026, Judgment entered against them. Defendants are ordered to file their proposed Answer within 15 days. <u>RJN</u> Plaintiff requests judicial notice of a proof of service and a request for entry of default previously filed in this action. These requests are denied as unnecessary. "It is not necessary to ask the court to take judicial notice of materials previously filed in the case; you should simply call the court's attention to such papers." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9.53.1a.) <u>Merits</u> The Court may grant discretionary relief from default based on mistake, inadvertence, surprise, or excusable neglect. The moving party must present specific facts establishing a statutory ground for

relief. (Code Civ. Proc., § 473, subd. (b); *Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410.)

Here, the Motion is timely filed relative to the defaults and Judgment. The proposed answer is attached to the Isaacs declaration.

First, Defendants argue, without presenting any admissible evidence, that “Bonaparte Liu has no recollection of being served with the Summons and Complaint and therefore dispute the validity of the default on that basis alone.” (Memo of Points and Authorities, Statement of Relevant Facts ¶5.)

But there is no citation to any evidence. In law and motion practice, counsel will frequently prepare a summary of facts in support of or in opposition to the motion. This may be part of a memorandum of points and authorities or consist of a separate statement of facts. Such a practice is useful as long as each fact mentioned is supported by admissible evidence and preferably if each such factual allegation is followed by an *appropriate reference to the evidence accompanying the motion or opposition*. (*Smith, Smith & Kring v. Superior Court (Oliver)* (1997) 60 Cal.App.4th 573, 577–578.) Absent such support in the evidence submitted, the court must disregard “facts” contained in an unverified statement. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224.)

Further, all three Defendants were served with the Summons and Complaint on November 25, 2025; the person served was “Bonaparte Liu,” the agent for service of process. But he was served via “Jane Doe,” a female accountant by substitute service. (ROA 11, 13, 15.) The “accountant” was served at the principal address of all three entities and the address identified for the agent for service of process – 4340 Von Karman Ave, Suite 390 Newport Beach, CA 92660. There is no declaration from her or Liu.

Second, Defendants argue that they made a mistake in not notifying their attorney. The only declaration provided in the Moving Papers is from Defense Counsel. Defense Counsel testifies that “I first learned of the default and default judgment in this action on or about May 4, 2026, when Mr. Bonaparte Liu contacted me.” (Isaacs Decl., ¶5.) It is not clear when the documents were given to Liu, but the Court does have evidence that he did not notify his counsel until after the defaults were entered.

Prior to the filing of this action, the parties were engaged in two separate litigation matters, Case No. 30-2023-01310690-CU-BT-CJC (the “Lease Dispute”) and 30-2024-01444990-CU-UD-CJC (the “UD Action”) both pending in the Superior Court of California,

County of Orange (the Lease Dispute and UD Action may be referred to collectively as the “Related Actions”). In both the Related Actions, Defendants were represented by Jackson W. Isaacs of Kimball, Tirey & St. John, LLP. The Related Actions were both resolved in a settlement between the Parties. (Isaacs Decl. ¶¶ 1, 3.) The alleged breaches of that settlement agreement are the central issue in this action by Snutec, Inc. Plaintiff filed the Complaint in this action on or about November 17, 2025. Despite knowing that Defendants were represented by counsel, Plaintiff’s counsel made no effort to notify Mr. Isaacs of the filing of this action, the service of process, or the intent to seek default. (Isaacs Decl. ¶ 4.)

There exists an ethical obligation to warn opposing counsel of an intent to take a default (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 701–702), which is reinforced by a statutory policy that all parties “cooperate in bringing the action to trial or other disposition” (CCP § 583.130; *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 137 [“Quiet speed and unreasonable deadlines do not qualify as cooperation and cannot be accepted by the courts.”]; *Shapell Socal Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 203–204, 213–214 [obligation to advise opposing counsel of an impending default is part of an attorney’s responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively].)

An attorney who knows the identity of opposing counsel must warn counsel before seeking entry of default and provide a reasonable opportunity to respond. Failure to give that warning is relevant to a request for relief, but does not alone establish entitlement to relief under section 473(b). The Court must also consider the circumstances causing the default, the moving party’s diligence, and any prejudice from setting the default aside. (*Shapell Socal Rental Properties, LLC*, supra, 85 Cal.App.5th at pp. 213–215.)

In short, if counsel has had any contact with the attorney representing a defendant, counsel should not attempt to get a default entered without first giving defendant’s counsel written notice, and a follow-up phone call as well, regarding intent to request entry of default, and a reasonable time within which defendant’s pleading must be filed to prevent such default.

In opposition, Plaintiff’s Counsel John Gulino testifies that Mr. Isaacs knew from a hearing in the underlying case that this lawsuit would be filed. (Gulino Decl., ¶5.) Plaintiff’s Counsel also testifies that Mr. Isaacs never offered to accept service of this lawsuit (before it was filed). (Gulino Decl., ¶7.) Also, after defaults were entered, Mr. Isaacs left a voicemail that stated he just learned about this case and that apparently a default had been entered. He continues

		“I wasn’t aware I wasn’t involved in that case.” (Gulino Decl., ¶¶13-14.) But that is consistent with Mr. Isaacs’s declaration – he learned of this case after default had been entered and called to ask for a stipulation to set it aside. Mr. Isaacs, who represented Defendants in the underlying actions, was not asked to accept service, was not informed of this lawsuit after it was filed, and was not warned prior to entry of default. Plaintiff requests compensation for attorney’s fees incurred because of defendants’ failure to appear. The Court finds \$2,000 in such fees reasonable and imposes that amount as just terms of discretionary relief under Code of Civil Procedure section 473(b). Defendants shall pay \$2,000 to plaintiff’s counsel, Gulino Law Office, within 30 days. Defendants shall serve notice of this ruling.
2.	2026-1562665 adQUADRANT , Inc. vs. Bett Botanicals Inc.	The Demurrer brought by Defendant Bett Botanicals, Inc. is overruled in its entirety. The complaint alleges a direct contractual relationship between plaintiff and Bett Botanicals, Inc. (Complaint, ¶ 6 & ex. A.) It therefore does not depend on alter-ego liability to state a claim against this defendant. Any deficiency in the alter-ego allegations does not defeat the direct contract claim. (Code Civ. Proc., § 430.10, subd. (e).) Defendant next argues that plaintiff’s allegation of contractual performance is conclusory. (Demurrer, p. 6, lines 4-7.) However, performance may be alleged in general terms. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1389.) “It is sufficient for a plaintiff to simply allege that he has ‘duly performed all the conditions on his part.’” (<i>Ibid.</i>; see also Code Civ. Proc., § 457.) Based on the above, Plaintiff’s allegation that it “performed all obligations required of it under the Agreement, except for those obligations that were waived or excused by the conduct of Bett and/or Does 1-10, inclusive” (Complaint, ¶15) is sufficient. Thereafter, Defendant challenges Plaintiff’s interpretation of the Agreement and, specifically, whether the Agreement provides a “minimum contract price.” As noted by the parties and alleged in the Complaint, the Agreement allows either party to terminate the agreement “without